

CV-18-003129 OVRAHIM, NARMELIN vs UNION PACIFIC RAILROAD COMPANY - Defendant Union Pacific Railroad Company's Motion for Protective Order - GRANTED, in part, DENIED, in part.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: A party may obtain discovery by the oral deposition of any person, including any party to the action. Code Civ. Proc., § 2025.010 The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. Code Civ. Proc., § 2025.420 In view of Plaintiff's prior deposition of Todd Conley, the predecessor Risk Manager of Defendant's current Risk Manager Morgan Fiut, Ms Fiut's recent appointment as Defendant's Risk Manager, the likely limited personal knowledge Ms Fiut possesses regarding the information at issue, and the likely unwarranted annoyance, embarrassment, or oppression, or undue burden that would be suffered by both Defendant and Ms. Fiut from said deposition, the Court finds that good cause exists to issue the requested protective order in part. Accordingly, Plaintiff may depose Ms. Fiut. However, said deposition shall be limited to matters of which Ms. Fiut possesses personal knowledge. Castaline v. City of Los Angeles (1975) 47 Cal.App.3d 580 Code Civ. Proc., § 2025.420 (a), (b) (9) and (10) ;Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, review denied. The Court notes evidence of considerable meet and confer between Counsel and given the partial grant of the motion herein, finds that Defendant acted with substantial justification. Accordingly, Plaintiff's request for monetary sanctions is denied. Code Civ. Proc., § 2025.420 (h).

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 20fda15901ee16539b0842dd0af1d4d93581f1aecbf23d2b313b77a437e3f8

CV-18-003129 - OVRAHIM, NARMELIN vs UNION PACIFIC RAILROAD COMPANY - Defendant Union Pacific Railroad Company's Motion for Protective Order - GRANTED, in part, DENIED, in part.

A party may obtain discovery by the oral deposition of any person, including any party to the action. Code Civ. Proc., § 2025.010

The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. Code Civ. Proc., § 2025.420

In view of Plaintiff's prior deposition of Todd Conley, the predecessor Risk Manager of Defendant's current Risk Manager Morgan Fiut, Ms Fiut's recent appointment as Defendant's Risk Manager, the likely limited personal knowledge Ms Fiut possesses regarding the information at issue, and the likely unwarranted annoyance, embarrassment, or oppression, or undue burden that would be suffered by both Defendant and Ms. Fiut from said deposition, the Court finds that good cause exists to issue the requested protective order in part.

Accordingly, Plaintiff may depose Ms. Fiut. However, said deposition shall be limited to matters of which Ms. Fiut possesses personal knowledge. Castaline v. City of Los Angeles (1975) 47 Cal.App.3d 580 Code Civ. Proc., § 2025.420 (a), (b) (9) and (10) ;Nativi v. Deutsche Bank National Trust Co. (2014) 223 Cal.App.4th 261, review denied.

The Court notes evidence of considerable meet and confer between Counsel and given the partial grant of the motion herein, finds that Defendant acted with substantial justification. Accordingly, Plaintiff's request for monetary sanctions is denied. Code Civ. Proc., § 2025.420 (h).